IN THE NATIONAL COMPANY LAW TRIBUNAL
CHANDIGARH (COURT – II)
(Through Hybrid Mode)

Item No. 4

CA (CAA) No. 32/Chd/Pb/2024
(1st Motion)

IN THE MATTER OF:
Lotus Corporate Solutions Pvt. Ltd. & Ors. ... **Transferor Company**

With

Trident.com Ltd. ... **Transferee Company**

Under Section: 230-232, CA 2013

Order delivered on 30.08.2024

CORAM:
SHRI. V. G. VENKATA CHALAPATHY, HON'BLE MEMBER (T)
SHRI. HARNAM SINGH THAKUR, HON'BLE MEMBER (J)

PRESENT:
For the Applicant Companies : Mr. Nahush Jain, Advocate

ORDER

The present first motion petition has been filed under Section 230-232 of Companies Act, 2013 for dispensation of the meeting but it is noted that in Company No.2, there is one trust as Shareholder i.e. Karamyogi Trust and the consent on behalf of the all the trustee stated to be given, but the resolution of the said trust dated 08.08.2024, bears only the signature of one of the trustee i.e. Mohan Singh Trustee. In these circumstances, learned counsel for the applicant companies is directed to place on record the minutes of the meeting of the said Trust held on 08.08.2024 authorizing Ms. Alka Mishra (one of the trustee) as authorized signatory for providing consent to the Scheme on behalf of the said trust as well as the Memorandum of Association of the said Trust. Learned counsel for the applicant company is also directed to depict the objects of the said Trust whether it can involve such merger or

some other financial activities. Let the same be done within one week and in case this Shareholder are involved in other company then the same compliance be made by the said Companies.

Let the matter be listed on 13.09.2024.

Sd/- Sd/-

(DR. V. G. VENKATA CHALAPATHY)
HON'BLE MEMBER (T)

(HARNAM SINGH THAKUR)
HON'BLE MEMBER (J)

August 30, 2024
Atiqur Rehman